

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
IVALINA PASSE,

Plaintiffs.

- against -

VERIFIED AMENDED
COMPLAINT

Index No.: 260037/2020

Date Filed: 1/16/20

THE CITY OF NEW YORK, KENDHIN
FURUTA SHIELD #8180, JOHN DOE POLICE
OFFICERS OF THE 48TH POLICE PRECINCT
1-10 & NEW YORK POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, complaining of the Defendants, through her attorneys, LAW OFFICE OF
CANER DEMIRAYAK, ESQ, P.C., respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this civil rights action seeking relief for the violation of plaintiff's rights secured by 42 USC 1983, 1985, and 1988, the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, for violations of plaintiff's federally protected procedural and substantive Due Process rights, and state and city law. Plaintiff's claims arise from an incident that arose on or about April 24 through 26, 2021. During the incident, the defendants, members of the New York Police Department and employees of the City of New York subjected plaintiff to, among other things, false arrest, false imprisonment, deliberate indifference to medical needs, denial of medical care, deprivation of property rights and violations of plaintiff's rights against illegal searches and seizures. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal, governmental and agency defendants, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

Jurisdiction

2. This court validly has jurisdiction over the state, city, and federal claims.

3. Plaintiff exhausted all administrative remedies prior to commencement of this action and timely filed a Notice of Claim upon the Comptroller's Office prior to commencement. A 50-h hearing was not scheduled within 90 days of the claim, thereby waiving the City's entitlement to such hearing.

4. This action was timely commenced within three (3) years of April 24, 2019, for the federal claims and within one (1) year and ninety (90) days of the state and city claims. Additionally, the tolling of the statute of limitations and other procedural deadlines during the COVID-19 pandemic would otherwise render this action timely commenced and prosecuted.

Parties

5. Plaintiff, Ivalina Passe, is an African American female who is a resident of County of Bronx, State of New York. At the time of the incident, plaintiff was a resident of 808 East 175th Street, Apartment EW in Bronx, New York. The plaintiff was assaulted by Tyler Watson on April 24, 2019 and illegally arrested and falsely imprisoned thereafter. As a result of egregious misconduct by the defendants in allowing illegal access to plaintiff's apartment by her assaulter while imprisoned, the criminal charges were dismissed against her in the interests of justice.

6. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the municipal corporation, THE CITY OF NEW YORK. Such defendant, through its various agents and employees violated plaintiff's rights as described herein.

7. At all times hereinafter mentioned, the individually named defendants, KENDHIN FURUTA SHIELD #8180 AND JOHN DOES 1-10, were duly sworn police officers of said

department and were acting under the supervision of said department and according to their official duties. Such defendants violated plaintiff's rights as described herein.

8. At all times hereinafter mentioned the defendants, either personally or through their employees were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

Statement of Facts

10. On or about April 24, 2019 at approximately 1:45 p.m. plaintiff was assaulted by Tyler Watson. As a result of the assault, plaintiff sustained visible injuries to her face right eye, including a bruised, damaged and black eye, and bruises to her left arm. The plaintiff requested the police come to assist her. In response, defendant Kendhin Furuta, Shield #8180 and his John Doe Partner of the 48th Precinct arrived.

11. When Officer Furuta and John Doe arrived they did not question plaintiff about her visible injuries or conduct any investigation. The immediately arrested the plaintiff violently and with excessive force and without any probable cause to support the arrest.

12. The defendants refused to provide any medical treatment or call emergency medical services to provide medical treatment despite plaintiff's visible injuries. Plaintiff repeatedly requested medical treatment while at the scene and while being transported in the officers' vehicle to no avail.

13. The officers refused to acknowledge the visible injuries to my eye and arms when shown. The officers refused to disclose any information as to why plaintiff was being arrested.

14. The officers refused to investigate the circumstances of the assault and arrested plaintiff without any investigation or determination of probable cause.

15. During all of this the plaintiff remained handcuffed.

16. When plaintiff arrived at the 48th Precinct various officers, the Captain and Sergeant on Detail made fun of the plaintiff's injury by stating "you have a shiner." "Shiner" is a term for a black eye injury. At the same time the arresting officers continued to deny seeing any injuries and refused to provide treatment.

17. Only after plaintiff's injury had been ridiculed did EMS finally arrive at the precinct to provide treatment. When the plaintiff requested to be taken to the hospital the officers attempted to dissuade the plaintiff stating it would delay and holdup her arrest process. The officers advised it would be better to not go to the hospital despite the injuries. The plaintiff was taken to North Central Bronx hospital and brought back to the precinct.

18. Despite the lack of probable cause the plaintiff was kept in a cell for 15 hours overnight.

19. On April 25, 2019 at 7:30 p.m. when plaintiff arrived home she realized she was locked out of her apartment as her keys were inside the apartment. As such, the super to the building changed the locks for plaintiff and allowed her access.

20. Plaintiff entered her apartment to observe a ransacked apartment, with drawers opened, money missing, identification and social security cards missing, and that her television was smashed in. It appeared the arresting officers searched the premises and damaged same during or after the arrest.

21. Later on that evening police officers from the 48th precinct arrived with Tyler Watson and her boyfriend. They repeatedly bang on my door demanding access. The officers directed flashlights into plaintiff's bedroom and threatened to forcibly enter the apartment. This harassment lasted for around 3 hours between 12:30 am and 3:00 a.m.

22. Since an order of protection had been issued I feared opening the door would have resulted in a violation of the order. Plaintiff called her criminal defense attorney who advised her not to open the door without an access order by the police and or court.

23. Later on that morning at around 9:30 a.m., officers of the 48th precinct arrived after the super of the building called for assistance after observing Tyler Watson and her boyfriend attempting to access the apartment through the back window.

24. When the officers arrived the police instead demanded to have the locks to plaintiff's apartment changed and to allow Tyler Watson access into my apartment. The officers used force and intimidation to compel the super to change the locks. However, no access or other judicial order was provided or shown by the officers. The officers advised the super that if the locks are not changed we will call our own locksmith to do this.

25. The officers unlawfully accessed the apartment while Tyler Watson was there and failed to secure any property or ensure that Watson did not take anything that was not hers.

26. On December 16, 2019 the criminal charges against plaintiff were dismissed in the interest of justice based on the misconduct of the police officers in unlawfully accessing plaintiff's apartment without an access order, demanding a change or the locks, and lacking any probable cause to arrest plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION
False Arrest/Unlawful Imprisonment under 42 USC 1983

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 26 with the same force and effect as if fully set forth herein.

28. Defendants arrested and/or created a custodial situation of plaintiff IVALINA PASSE without probable cause, causing her to be detained against her will for an extended period of time with no basis in law for such arrest, custody or detainment.

29. Defendants caused plaintiff IVALINA PASSE to be falsely arrested and unlawfully detained.

30. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
Violation of Right to Fair Trial under 42 USC 1983

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 30 with the same force and effect as if fully set forth herein.

32. Defendants created false evidence against plaintiff IVALINA PASSE.

33. Defendants utilized this false evidence against plaintiff IVALINA PASSE in legal proceedings.

34. As a result of defendants' creation and use of false evidence, plaintiff IVALINA PASSE suffered a violation of her constitutional rights to a fair trial, as guaranteed by the United States Constitution.

35. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
Malicious Prosecution under 42 USC 1983

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 35 with the same force and effect as if fully set forth herein.

37. Defendants initiated, commenced and continued malicious prosecutions against plaintiff IVALINA PASSE.

38. Defendants caused plaintiff IVALINA PASSE to be prosecuted without any probable cause until the charges were dismissed on or about December 16, 2019.

39. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
Failure to Intervene under 42 USC 1983

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 39 with the same force and effect as if fully set forth herein.

41. Defendants had an affirmative duty to intervene on behalf of plaintiff IVALINA PASSE, whose constitutional rights were being violated in their presence by other officers.

42. The defendants failed to intervene to prevent the unlawful conduct described herein.

43. As a result of the foregoing, plaintiff IVALINA PASSE liberty was restricted for an extended period of time, she was put in fear of his safety, she was subjected to handcuffing, and she was humiliated and compelled to appear in criminal court.

44. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
Supervisory Liability under 42 USC 1983

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 44 with the same force and effect as if fully set forth herein.

46. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

47. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
Municipal Liability under 42 USC 1983

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 47 with the same force and effect as if fully set forth herein.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees that as the moving force behind the violation of plaintiff IVALINA PASSE's rights as described herein. In addition, the New York City Police Department has failed to properly train its employees with regard to the proper issuance of summonses, and defendant City was aware that NYPD officers routinely issued baseless and facially insufficient summonses to individuals in response to summons quota's, depriving said individuals of their constitutional rights. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff IVALINA PASSE.

52. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff IVALINA PASSE as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff IVALINA PASSE as alleged herein.

54. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff IVALINA PASSE was unlawfully arrested and maliciously prosecuted.

55. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff IVALINA PASSE constitutional rights.

56. All of the foregoing acts by defendants deprived plaintiff IVALINA PASSE of federally protected rights, including, but not limited to, the rights to be free from false arrest/unlawful imprisonment, to be free from the failure to intervene, to receive his right to fair trial, and to be free from malicious prosecution.

57. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
Denial of Medical Care and Deliberate Indifference under 42 USC 1983

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 57 with the same force and effect as if fully set forth herein.

59. Defendants are liable to plaintiff because they deliberately ignored plaintiff's need for medical treatment for a serious mental health and or medical issue or injury, or delayed such treatment deliberately, and the harm occasioned by such an act is redressable under the Fourteenth Amendment to the United States Constitution, and 42 USC 1983.

60. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the

individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN SEVENTH CAUSE OF ACTION
Unreasonable Force under 42 USC 1983

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 60 with the same force and effect as if fully set forth herein.

62. The individual defendants' use of force upon plaintiff was objectively unreasonable.

63. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

64. Those defendants who did not touch the plaintiff, witnesses these acts, but failed to intervene and protect plaintiff from his conduct.

65. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
42 USC 1983 Federal Civil Rights Violations

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 66 with the same force and effect as if fully set forth herein.

67. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

68. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 USC 1983.

69. The Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD officers. Said acts by the Defendants officers and agents were without authority of law, an abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by Article I, Section 12 of the New York Constitution and the United States Constitution.

AS AND FOR A NINTH CAUSE OF ACTION
42 USC 1983 Conspiracy

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 69 with the same force and effect as if fully set forth herein.

71. Defendants are liable to plaintiff because they agreed to act in concert, with each other, to inflict unconstitutional injuries; and committed overt acts done in furtherance of that goal causing damage to plaintiff.

72. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
Deprivation of Property Rights

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 72 with the same force and effect as if fully set forth herein.

74. The defendants forced and gained access into plaintiff's residence without any probable cause or access order and in violation of plaintiffs' rights to due process.

75. As a result, plaintiff's locks were changed, her property was damaged, stolen and lost.

76. Defendants are liable to plaintiff for depriving her of her property rights pursuant to the Federal and New York State Constitutions without due process of law.

77. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
Unlawful Search and Seizure

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 77 with the same force and effect as if fully set forth herein.

79. The defendants forced and gained access into plaintiff's residence without any probable cause or access order and in violation of plaintiffs' rights to due process and against unreasonable searches and seizures of her property.

80. As a result, plaintiff's privacy rights were violated without a warrant, access order or probable cause and plaintiff's locks were changed, her property was damaged, stolen and lost.

81. Defendants are liable to plaintiff for depriving her of her right to privacy and rights against unlawful searches and seizures pursuant to the Federal and New York State Constitutions without due process of law and without any probable cause.

82. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the

individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
False Arrest/Unlawful Imprisonment Under New York State Common Law

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 82 with the same force and effect as if fully set forth herein.

84. Defendants arrested and/or created a custodial situation of plaintiff IVALINA PASSE without probable cause, causing her to be detained against her will for an extended period of time with no basis in law for such arrest, custody or detainment.

85. Defendants caused plaintiff IVALINA PASSE to be falsely arrested and unlawfully detained.

86. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
Malicious Prosecution Under New York State Common Law

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 86 with the same force and effect as if fully set forth herein.

88. Defendants initiated, commenced and continued malicious prosecutions against plaintiff IVALINA PASSE.

89. Defendants caused plaintiff IVALINA PASSE to be prosecuted without any probable cause until the charges were dismissed on or about December 16, 2019.

90. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is also entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
Deliberate Indifference/Denial of Medical Care Under New York State Common Law

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number 1 through 90 with the same force and effect as if fully set forth herein.

92. Defendants are liable to plaintiff because they deliberately ignored plaintiff's need for medical treatment for a serious mental health and or medical issue or injury, or delayed such treatment deliberately, and the harm occasioned by such an act is redressable under the Fourteenth Amendment to the United States Constitution, and 42 USC 1983.

93. As a result of the foregoing, plaintiff IVALINA PASSE is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

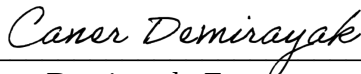
WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- I. Compensatory damages in an amount to be determined by a jury, exceeding the jurisdictional limits of all lower other courts that would otherwise have jurisdiction herein;
- II. Punitive damages in an amount to be determined by a jury;
- III. Costs, interest and attorney's fees, pursuant to 42 USC 1988 and New York Common Law; and

IV. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

LAW OFFICE OF CANER DEMIRAYAK, ESQ., P.C.

Dated: Brooklyn, New York
August 13, 2021



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ATTORNEY'S VERIFICATION

CANER DEMIRAYAK, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at LAW OFFICE OF CANER DEMIRAYAK, ESQ., P.C., attorneys of record for Plaintiff, Ivalina Passe. I have read the annexed AMENDED COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presented in the county wherein I maintain my office.

Dated: Brooklyn, New York
August 13, 2021

Caner Demirayak
Caner Demirayak, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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IVALINA PASSE,

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OFFICERS OF THE 48TH POLICE PRECINCT
1-10 & NEW YORK POLICE DEPARTMENT,

Defendants.
-----X

AMENDED SUMMONS & AMENDED VERIFIED COMPLAINT

LAW OFFICE OF CANER DEMIRAYAK, ESQ., P.C.
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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certified that upon information and belief and reasonable inquiry, the contents contained in the annexed documents are not frivolous.

Dated: August 13, 2021


Caner Demirayak, Esq.